ELECTRONICALLY FILED
Superior Court of California
County of Sacramento
02/02/2026
By: C. Torres Deputy

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SACRAMENTO

BRENDAN NGEHSI NEWANFORBI, *Petitioner,* v. JEFFREY MACOMBER, in his official capacity as Secretary of the California Department of Corrections and Rehabilitation, *Respondent.*	Case No. 26WM000028 **FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE (No Substantive Changes)** (Code Civ. Proc. § 1085) [Alternative Writ Requested]

FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
(No Substantive Changes)

Petitioner Brendan Ngehsi Newanforbi respectfully petitions this Court for a writ of mandate pursuant to Code of Civil Procedure section 1085 to compel Respondent Jeffrey Macomber, in his official capacity as Secretary of the California Department of Corrections and Rehabilitation (CDCR), to perform the ministerial duty to conduct an individualized parole discharge determination in accordance with California Penal Code sections 3008(d)(2), 3000 et seq., and related statutes, and to set aside Respondent's denial of early discharge from parole dated December 1, 2025 (the "Discharge Review Report"). Petitioner does not seek a court-ordered discharge, but only a lawful determination conducted under the correct statutory standards.

I. NATURE OF THE ACTION

This action challenges CDCR's unlawful application of categorical policy bars that override the individualized, case-by-case statutory criteria that must govern parole discharge decisions. Specifically, CDCR denied Petitioner's discharge based on two categorical rules unsupported by statute:

1. A rigid rule under Policy 19-03 (Amended) that parolees with 10-year parole terms are ineligible for early discharge until serving at least 6.5 years; and
2. A policy requiring "completion" of sex offender treatment that CDCR itself defines as impossible to achieve before parole discharge.

Neither categorical bar appears in the governing statutes; in fact, both contradict the express statutory range ("not less than one year, up to the entire period of parole") and individualized assessment mandate. By substituting bright-line policies for individualized statutory analysis, CDCR has violated its ministerial duty under California law, exceeded its statutory authority, and rendered the words "up to" surplusage in violation of the canon that every word in a statute must be given effect.

II. PARTIES

A. Petitioner

1. Petitioner Brendan Ngehsi Newanforbi (CDC # BF3571) is currently on parole supervision in San Joaquin County under the jurisdiction of CDCR's Division of Adult Parole Operations

(DAPO), Stockton 2 GPS unit. Petitioner was originally released on parole on December 2, 2020 following conviction for violations of Penal Code section 289(a)(1)(A) (Penetration w/Force/Violence/Fear of Immediate Bodily Injury) and section 220(a)(1)(01) (Assault with Intent to Commit Specified Sex Offense). Petitioner is subject to PC 290 registration requirements and has been assigned a 10-year parole term with a controlling discharge date of December 2, 2030. Petitioner has been directly and concretely harmed by CDCR's categorical policies: despite serving approximately five years of continuous parole supervision under the operative term (December 2020-December 2025), with low risk scores, stable residence, and substantial compliance, he has been denied discharge consideration based solely on mechanical application of unauthorized time-based bars and an impossible-to-satisfy treatment completion standard. This constitutes ongoing unlawful restraint of liberty. Petitioner has a clear, present, and beneficial right to a parole discharge determination conducted in accordance with statutory requirements.

B. Respondent

Respondent Jeffrey Macomber is the Secretary of the California Department of Corrections and Rehabilitation, the official with ultimate authority over parole operations and discharge determinations. Respondent is sued in his official capacity as the officer who has the ministerial duty under Penal Code sections 3008(d)(2) and 3000 et seq. to ensure that parole discharge determinations are conducted in accordance with statutory requirements. Code Civ. Proc. § 1085.

III. JURISDICTION AND VENUE

1. This Court has jurisdiction pursuant to Code of Civil Procedure section 1085, which authorizes this Court to issue writs of mandate to compel the performance of an act which the law specially enjoins as a duty resulting from an office.

2. Venue is proper in Sacramento County Superior Court pursuant to Code of Civil Procedure section 401, as Sacramento County is the seat of state government and the location where Respondent, as Secretary of CDCR, maintains his principal office and formulates the challenged statewide policies. This venue is consistent with Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378), which successfully challenged identical CDCR policies in this Court. In the alternative, should the Court find venue more appropriate in San Joaquin County where Petitioner is supervised, the proper remedy is transfer under Code of Civil Procedure section 397, not dismissal.

IV. EXHAUSTION OF ADMINISTRATIVE REMEDIES

3. Exhaustion of administrative remedies is not required, or in the alternative, is excused for the following reasons:

A. Futility

4. Petitioner can "positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. The Discharge Review Report dated December 1, 2025 (Exhibit A hereto) specifically cites categorical policy criteria as the sole bases for denial. The Unit Supervisor Comments state:

> *"Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision."*

5. This language establishes that CDCR applies a fixed departmental criterion—the 10-year/6.5-year rule—that operates mechanically without regard to individual circumstances. Any administrative appeal would be denied based on the same categorical formula.

6. Similarly, CDCR officials have admitted under oath that CDCR policy prohibits completion of sex offender management programs prior to discharge from parole. In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order Mar. 20, 2023) (Exhibit B hereto), CDCR representatives testified that "a sex offender cannot successfully 'complete' a sex offender management treatment program while on parole." This admission establishes that any administrative appeal challenging the "incomplete treatment" ground would be denied based on the same unlawful categorical policy.

7. Both categorical bars reflect fixed CDCR policies, not individualized statutory analysis. Further administrative proceedings would be futile.

B. No Adequate Administrative Remedy

8. The administrative grievance process cannot provide adequate relief because Petitioner challenges the legality of statewide CDCR policies that exceed statutory authority. The CDCR 602 administrative grievance process is designed to address individual factual disputes, not to invalidate regulations or declare agency policies ultra vires. Horn v. County of Ventura (1979) 24 Cal.3d 605, 611 ("One need not exhaust inadequate remedies in order to challenge their sufficiency."). Administrative reviewers lack the authority to declare departmental policies unlawful or to invalidate criteria adopted by agency headquarters.

9. The Board of Parole Hearings has no administrative appeal process for discharge denials issued by DAPO. According to the Roadmap to Reentry legal guide: "To challenge a BPH decision or a parole condition set by the BPH, you do not need to file an administrative appeal—UNLESS the issue involves a disability. Since the BPH has no administrative appeal process, you can immediately file a state petition for writ of habeas corpus [or mandate]." The only adequate remedy is judicial review.

C. Pure Question of Law

10. This petition presents pure questions of law requiring no further factual development: whether CDCR's categorical policies comply with Penal Code sections 3008(d)(2) and 3000 et seq., and whether CDCR exceeded its statutory authority by imposing eligibility criteria not found in statute. Courts, not administrative agencies, are the appropriate forum to resolve statutory interpretation and ultra vires challenges. County of Contra Costa v. State of California (1986) 177 Cal.App.3d 62, 73.

V. STATEMENT OF FACTS

A. Petitioner's Parole History and Compliance

11. Petitioner was originally released on parole on December 2, 2020. As of the December 1, 2025 Discharge Review Report, Petitioner had served approximately five years of continuous parole supervision under the operative term. He has been classified as Category SA, CSRA Score: 2 (low-risk classification). The Report's reference to having 'only completed approximately 4 years of the required 6.5 years' reflects CDCR's internal accounting methods not grounded in statute and further illustrates the arbitrary nature of the challenged categorical criteria. Regardless of how CDCR internally calculates elapsed time, no statute authorizes a minimum time-served requirement for discharge eligibility. The 6.5-year bar is an unauthorized

addition to statutory criteria. Tidewater Marine Western, Inc. v. Bradshaw (1996) 14 Cal.4th 557 (agency policies adding requirements not found in statute are invalid).

12. The Parolee Dynamic Profile evaluation demonstrates: (1) stable residence with family in Stockton for eight months or longer; (2) compliance with general and special parole conditions; (3) participation in sex offender treatment with partial completion and ongoing progress (Core Phase, Block 1, Module 4/7); (4) affiliation with pro-social individuals. Despite some parole violations during the review period (related to treatment access and GPS charging, not new criminal conduct), CDCR did not pursue revocation, and Petitioner has maintained stable family residence and low risk scores.

B. The December 1, 2025 Discharge Review Report: Categorical Denial

13. On December 1, 2025, CDCR issued a Discharge Review Report (CDCR Form 1502-DR) denying Petitioner's consideration for early discharge. The Unit Supervisor stated:

> *"Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision."*

14. The Report also cites "incomplete sex offender treatment" as a basis for denial. These two categorical bars—the 10-year/6.5-year time requirement and treatment noncompletion—constitute the entirety of the substantive denial reasoning.

15. Critically, nowhere in the Discharge Review Report does CDCR cite or apply the individualized statutory criteria set forth in Penal Code sections 3008(d)(2) or 3000 et seq. The Report does not reference consultation with certified sex offender management professionals regarding individualized program duration under § 3008(d)(2). It does not cite current risk assessment scores or evidence-based evaluation of whether continued treatment is necessary for public safety. It does not weigh Petitioner's demonstrated compliance and stability. Instead, the denial rests entirely on automatic, policy-based exclusions.

C. CDCR's Categorical Policies Exceed Statutory Authority

16. The 10-year/6.5-year criterion referenced in the Discharge Review Report derives from CDCR's internal Policy 19-03 (Amended). This categorical bar does not appear in any California statute. Penal Code sections 3000 et seq. establish maximum parole terms but do not create minimum time-served requirements for discharge eligibility.

17. The "incomplete treatment" criterion flows from CDCR's longstanding policy that sex offender management programs "cannot be completed short of discharge from parole." In In re Dwyer, CDCR witnesses testified under oath that their interpretation of § 3008(d)(2) requires parolees to maintain "some connection to treatment" for the entire period of parole until discharge, making early completion structurally impossible. (San Mateo Super. Ct. Order at 4-5, 7.)

18. Following litigation in Alliance v. Macomber, CDCR adopted new regulations effective April 17, 2025 (15 Cal. Code Regs. § 3574) that explicitly state: "Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by PC section 3008(d)." Critically, section 3574(f) requires that retention determinations be "supported by good cause" as defined in Penal Code section 3000, stated in writing on Form CDCR 3043, signed by both the treatment provider and parole agent, and delivered to the parolee

within 30 days. The December 1, 2025 Report contains no such written good cause determination, no Form 3043, no Containment Team Meeting (CTM) findings as required by section 3574(e), and no risk-based rationale tied to statutory criteria. This regulatory adoption constitutes an admission against interest that prior policies (and current application) were unlawful. The agency cannot simultaneously concede in regulations that early completion is possible while denying it in practice. This demonstrates bad-faith continued enforcement despite regulatory changes and constitutes arbitrary and capricious agency action.

VI. STATEMENT OF LAW

A. Code of Civil Procedure § 1085: Ordinary Mandate

19. Code of Civil Procedure section 1085 authorizes this Court to issue a writ of mandate to compel "the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station." The writ runs against the officer who holds the legal duty. Code Civ. Proc. § 1085.

20. Two essential elements must be shown: "(1) a clear, present and usually ministerial duty on the part of the respondent… and (2) a clear, present and beneficial right in the petitioner to the performance of that duty." California Ass'n for Health Services at Home v. Dep't of Health Care Services (2012) 204 Cal.App.4th 676, 683.

21. A ministerial duty arises when the law specially enjoins an act. Even if discretion is involved in applying statutory criteria, mandate lies where the agency exercises discretion under an unlawful standard or substitutes categorical rules for required individualized analysis. Pomona Police Officers' Ass'n v. City of Pomona (1997) 58 Cal.App.4th 578, 583-84.

22. The duty to apply the correct legal standard is ministerial, even where the ultimate decision involves discretion. When an agency is required by statute to apply specific criteria in reaching a decision, the agency's obligation to use those criteria (rather than substitute its own policy-based criteria) is a ministerial duty enforceable by mandate. The discretion lies in weighing the statutory factors, not in choosing which factors to consider.

23. Mandate also lies to correct an abuse of discretion, which occurs when an agency "has not proceeded in the manner required by law." Code Civ. Proc. § 1094.5(b); Pomona Police, 58 Cal.App.4th at 583-84. When an agency fails to apply statutory criteria and instead relies on unauthorized categorical policies, it fails to proceed in the manner required by law.

B. Penal Code § 3008(d): The Individualized Determination Mandate

24. Penal Code section 3008(d)(2) governs sex offender management programs for parolees placed on parole on or after July 1, 2012. It provides:

> *"Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program… as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court."*

25. The statutory phrase "not less than one year, up to the entire period of parole" establishes a discretionary range requiring individualized assessment. The word "up to" necessarily implies that program duration may be less than the full parole term. CDCR's interpretation renders the

words “up to” surplusage, violating the canon of statutory construction that every word in a statute must be given effect. People v. Rizo (2000) 22 Cal.4th 681, 685.

26. By defining “completion” as impossible before discharge and applying automatic term-based bars, CDCR converts “up to” into “always,” directly contradicting the statute’s plain language and violating its ministerial duty to perform individualized determinations.

C. Categorical Rules Eliminating Statutory Discretion Are Invalid

27. In In re Gadlin (2020) 10 Cal.5th 915, the California Supreme Court unanimously struck down CDCR regulations that categorically excluded inmates with registerable sex offense convictions from nonviolent offender parole consideration. The Court held: “This categorical exclusion conflicts with the constitutional directive that inmates… convicted of a nonviolent felony offense… shall be eligible for parole consideration.” Id. at 928.

28. The Supreme Court emphasized that “eligibility must be based on an inmate’s current circumstances—not categorical rules applied without individual consideration.” Id. CDCR cannot create “wholesale exclusions” from statutory rights. Id.

29. Similarly, In re Taylor (2015) 60 Cal.4th 1019 held that blanket parole restrictions are permissible only when “based on, and supported by, the particularized circumstances of each individual parolee.” 60 Cal.4th at 1037. These precedents establish that when agencies convert discretionary statutory authority into categorical rules, mandate relief is appropriate to compel compliance with individualized statutory mandates.

D. Superior Court Precedent

30. While not binding appellate precedent, the reasoning of recent Superior Court rulings is directly on point and persuasive regarding CDCR’s systemic failure to comply with Penal Code § 3008(d).

31. In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order Mar. 20, 2023), the court conducted an evidentiary hearing and found that CDCR’s practice of requiring treatment “for the entire term of parole, apparently without reference to the individualized performance of each parolee” vitiates the Legislature’s directive. The court found that “[d]iscretion exercised in that fashion… effectively requires all parolees participating in this program to do so for the entire term of parole.” Order at 11.

32. In Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378, Order Dec. 13, 2023), this Court overruled CDCR’s demurrer, holding that a petition alleging these exact statewide policies states a valid cause of action for ordinary mandate under § 1085. The Macomber ruling validates both the procedural vehicle and the exhaustion arguments presented here, demonstrating that this legal theory has already survived the Attorney General’s initial challenges.

VII. CAUSE OF ACTION: VIOLATION OF MINISTERIAL DUTY AND ABUSE OF DISCRETION

33. Petitioner re-alleges and incorporates by reference all preceding paragraphs.

34. Respondent has a clear, present, and ministerial duty under Penal Code sections 3008(d)(2) and 3000 et seq. to perform the ministerial duty of conducting individualized parole discharge determinations based on statutory criteria.

35. Respondent violated this duty by denying discharge based on two categorical bars not found in statute: (a) the 10-year/6.5-year Policy 19-03 (Amended) criterion, and (b) the "incomplete treatment" criterion based on CDCR's policy that treatment cannot be completed prior to discharge.

36. The Discharge Review Report also references unemployment and parole violations. However, even if these factors were proper considerations, they cannot salvage an otherwise unlawful decision premised on categorical bars. First, CDCR did not pursue revocation for these violations, indicating CDCR itself determined they did not pose a threat to public safety. Second, the violations documented in the Report relate to treatment access and GPS charging issues—not new criminal conduct or deceptive polygraph responses. Third, under 15 Cal. Code Regs. section 3574(f), violations do not automatically justify retention; CDCR must demonstrate "good cause" tied to individualized risk assessment, which the Report fails to do. Fourth, under the "taint" doctrine, when an agency relies on both proper and improper grounds, the court cannot presume the agency would have reached the same result using only proper criteria. The appropriate remedy is to vacate and remand for a lawful determination applying only statutory and regulatory criteria. See California Highway Patrol v. Superior Court (2008) 158 Cal.App.4th 726, 735 (decision based partly on improper standard must be set aside); cf. Topanga Ass'n for a Scenic Community v. County of Los Angeles (1974) 11 Cal.3d 506, 514-515 (agency must articulate findings supporting decision under proper legal standard).

37. Respondent exceeded statutory authority by imposing eligibility criteria that do not appear in any statute and that effectively rewrite the Legislature's individualized assessment framework.

38. Petitioner has been directly and concretely harmed by CDCR's categorical policies. Petitioner has served over 5 years on parole with low risk scores, stable residence, and substantial compliance, yet has been denied discharge consideration based solely on mechanical application of unauthorized time-based bars and an impossible-to-satisfy treatment completion standard. This constitutes ongoing unlawful restraint of liberty, creating both standing and ripeness for immediate judicial review. The harm is not speculative or future—it occurs each day Petitioner remains on parole supervision beyond what the statute authorizes.

39. Petitioner has a clear, present, and beneficial right to a parole discharge determination conducted in accordance with applicable statutes. Petitioner has no plain, speedy, or adequate remedy in the ordinary course of law other than this writ of mandate.

40. Absent relief from this Court, Petitioner will continue to be subjected to unlawfully prolonged parole supervision based on categorical agency rules rather than the individualized statutory criteria to which he is entitled.

VIII. RESERVATION OF FEDERAL CLAIMS

41. Petitioner expressly reserves the right to litigate any federal constitutional claims, including claims under 42 U.S.C. § 1983, in a federal forum. This petition seeks relief solely for violations of state statutory duties and state administrative law principles. Petitioner does not waive, and specifically preserves, any federal claims arising from Respondent's conduct. England v. Louisiana State Bd. of Med. Exam'rs (1964) 375 U.S. 411. This petition seeks to compel CDCR's compliance with state law, creating a judicial record of ultra vires conduct that may support later federal claims for pattern-and-practice violations under 42 U.S.C. § 1983. Because mandate addresses prospective statutory compliance, while § 1983 targets past constitutional

violations, the two remedies are distinct and non-duplicative. A favorable ruling will establish CDCR's statutory violations under state law without prejudicing federal constitutional claims. Monell v. Dept. of Soc. Servs. (1978) 436 U.S. 658.

PRAYER FOR RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

1. Issue an alternative writ of mandate or order to show cause directing Respondent to show cause, if any, why a peremptory writ of mandate should not issue;

2. Following hearing or submission, issue a peremptory writ of mandate commanding Respondent to:

   a. Vacate and set aside the December 1, 2025 Discharge Review Report;

   b. Conduct a new parole discharge determination for Petitioner applying the individualized statutory criteria set forth in Penal Code sections 3008(d)(2), 3000 et seq., and 15 Cal. Code Regs. § 3574, without reliance on categorical bars;

   c. Specifically, command Respondent to reconsider Petitioner's discharge eligibility without applying CDCR Policy 19-03 (Amended)'s requirement that a parolee with a 10-year term serve 6.5 years before discharge eligibility, and without treating 'completion' of a sex offender management program as a precondition that is definitionally impossible to satisfy prior to discharge;

   d. Determine sex offender management program length through consultation with certified sex offender management professionals and parole agents, as mandated by Penal Code section 3008(d)(2), based on Petitioner's individual progress, risk assessment, and compliance history;

   e. Apply written retention criteria as required by 15 Cal. Code Regs. § 3574, including treatment provider and parole agent assessment of progress and risk, with written documentation of good cause for any continued retention;

3. Award Petitioner costs of suit;

4. Retain jurisdiction to ensure compliance with the Court's orders; and

5. Alternatively, issue a declaratory judgment pursuant to Code of Civil Procedure section 1060 declaring that CDCR Policy 19-03 (Amended)'s 10-year/6.5-year time-based eligibility criterion is invalid as ultra vires, and that CDCR's categorical prohibition on treatment program completion prior to parole discharge violates Penal Code section 3008(d)(2) and 15 Cal. Code Regs. section 3574;

6. Grant such other and further relief as the Court deems just and proper.

Dated: February 2, 2026

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi

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Brendan Ngehsi Newanforbi
Petitioner, In Pro Per

VERIFICATION

I, Brendan Ngehsi Newanforbi, am the Petitioner in the above-entitled action. I have read the foregoing First Amended Verified Petition for Writ of Mandate and know the contents thereof. The same is true of my own knowledge, except as to those matters which are stated on information and belief, and as to those matters, I believe them to be true.

I further certify that the attached Exhibit A is a true and correct copy of the Discharge Review Report provided to me by CDCR on December 1, 2025.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 2, 2026, at Stockton, California.

/s/ Brendan Ngehsi Newanforbi

_____

Brendan Ngehsi Newanforbi

EXHIBIT A

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

SECTION I PAROLEE PROFILE Case Type: **PC3000(b)(5)(B)**

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

CSRA Score:	Supervision Category:	Discharge Review Date:	Controlling Discharge Date:
2	**SA**	**12-01-2025**	**12-02-2030**

Commitment Offenses:
PC289(a)(1)(A)[01] Penetration w/Force/Violence/Fear of Immediate Bodily Injury, PC220(a)(1)[01] Assault with Intent to Commit Specific Sex Offense

Imminent Discharge: [X] DNA Sample Obtained: [X] YES [ ] NO Non-Controlling Offenses: [X] YES [ ] NO

Commitment Offense Subject To PC 667.5(C): [X] YES [ ] NO Commitment Offense Subject To PC1192.7 9 (C) or 1192.8: [X] YES [ ] NO

PC 290 Registrant: [X] YES* [ ] NO * If Yes, Sex Offender Static Risk Assessment: Score: 4

Other Registration Requirements: [ ] PC 457.1 [ ] PC 186.30 [X] NONE

Circumstances of Commitment Offense (Note any weapons used or possessed during the controlling or non-controlling offense):

According to Santa Clara County Probation Officer's Report, Santa Clara Police Department officers responded to a report of sexual assault which occurred at the Santa Clara University. The Victim (V1) stated she left her friend's dormitory at 2000 hours and proceeded to her dormitory. As she was walking, a man later identified as Brendan Newanforbi, approached her from behind, picked her up and carried her approximately five feet. Newanforbi dropped V1 on the ground and inserted his fingers into her vagina. V1 screamed and resisted Newanforbi so Newanforbi fled the scene. V1 was transported to the Valley Medical Center for a SART exam. V1 sustained abrasions to her left knee, left hip area, left wrist and complained of pain to her vagina. Officers reviewed surveillance footage from cameras and showed a figure running, and a grey ford mustang fleeing the scene. On 03/03/2017, Newanforbi was stopped for speeding and taken into custody for matching the description. Newanforbi self- admitted to groping V1 and stated he had uncontrollable urges and needed help.

Prior Criminal History: (Note any history of weapons, serious or violent felonies and any other relevant criminal information):

[X] Criminal History Attached (Dated no more than 30 days prior to due date of DRR)

01/12/18-PC 289(A)(1)(A): SEXUAL PENETRATION W/FORCE/ETC, PC 220(A)(1): ASSAULT:W/INTENT TO RAPE (6 YEARS PRISON)

Special Conditions of Parole: [X] CDCR Form 1515- Addendum Attached (* If necessary.)

[ ] None [ ] Anti-Narcotic Testing [ ] Drug Treatment [X] No Alcohol [ ] Attend POC [X] * Other

Parole Violations: (Note any parole violations, arrests, pending investigations and/or dispositions incurred during this period of review)

2025-03-04 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Verbal Reprimand)
2025-06-26 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Referral to PACT Program, Verbal Reprimand)
2025-07-15 FAILURE TO CHARGE GPS TWICE PER DAY EVERY 12 HOURS FOR 1 FULL HOUR OF CHARGING COP (Verbal Reprimand)
2025-08-18 FAILURE TO PROPERLY CHARGE GPS DEVICE COP (Referral to PACT Program, Verbal Reprimand)

Gang Activity Or Affiliation: (Note any past or present involvement in any prison, criminal, or street gang)

[X] None Validated: [ ] Member [ ] Associate [ ] Affiliate [ ] Dropout [ ] Active [ ] Inactive

Gang:

Current or past activity:

Mental Health Factors (Note mental health status of the parolee and his or her compliance with any mental health treatment):

[ ] None [ ] Voluntary [X] CCCMS [ ] EOP [ ] MDO

If CCCMS/EOP/MDO: [X] Compliant [ ] Non - Compliant

[X] BHR Report Attached (Dated no more than 45 days prior to due date of DRR)

Restitution (Note any fine and/or restitution balance at the time of review, and any effort to satisfy the fine and/or restitution balance):

[X] None [ ] Satisfied [ ] Not Satisfied Amount remitted to date: $ **0** Outstanding balance: $ **0**

Employment (Note any employment, educational or vocational training):

Employment [X] None [ ] Employed [ ] Full Time [ ] Part Time

Student: [X] None [ ] Student [ ] Full Time [ ] Part Time

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Employer Name (If applicable):

Position:

Program Name (If applicable):

DISCHARGE REVIEW REPORT

CDC Number: BF3571	Print Name (Print Last, First, MI): NEWANFORBI, BRENDAN, NGEHSI	Region: N	Parole Unit: STOCKTON 2 GPS

SECTION II PAROLEE DYNAMIC PROFILE CATEGORY: SA CSRA: 2

Objective 1: The parolee has maintained residence stability in a positive living environment.

1=Has been in the same pro-social living situation for eight months or longer; or less than eight months, but at least six months, when the most recent move was to improve overall living conditions, and will continue to be available to the parolee.

Objective 2: The parolee's time has been structured around pro-social activities geared towards self-reliance.

3=Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.

Objective 3: The parolee has been compliant with his or her general and special conditions of parole.

3=The parolee has not met the rating standard for #1 or #2 above.

Objective 4: The parolee was referred and participated in programming for his or her top three criminogenic needs.

3=Failed to attend, participate, or complete.

Objective 5: The parolee has affiliated himself or herself with other pro-social individuals.

2=Parolee is seeking to terminate anti-social relationships, but still maintains some anti-social relationships.

Objective 6: Parolee has been referred to and participated in required sex offender treatment.

2=Attended and partially participated in sex offender treatment.

Parolee Dynamic Profile Recommendation: **Retain On Parole**

Aggravating Factor(s) to Consider:

Supervised Person Brendan Newanforbi is unemployed, incurred multiple parole violations during this review period, and has not completed sex offender treatment.

Mitigating Factor(s) to Consider:

Supervised Person Brendan Newanforbi has stable residence with his family.

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	NEWANFORBI, BRENDAN, NGEHSI	N	STOCKTON 2 GPS

SECTION III RECOMMENDATION

Parole Agent Recommendation:

- [ ] Retain on Parole
- [x] Discharge Denied/No Action
- [ ] Discharge Controlling Offense Approved
- [ ] Discharge Non-Controlling Offense Approved

Parole Agent Comments / Recommendation:

Objective 1: Residence - Newanforbi currently has stable residence with his family in Stockton.

Objective 2: Employment - Newanforbi is currently unemployed.

Objective 3: General/Special Conditions - Newanforbi has incurred multiple parole violations during this review period.

Objective 4: Addressed Criminogenic Needs - Newanforbi's Criminogenic Needs for Substance Abuse rated Probable and Unlikely for all other categories.

Objective 5: Pro-Social - Newanforbi does not appear to have a large social circle.

Objective 6: Sex Offender - Newanforbi is not currently titrated and is not in the maintenance phase of his treatment with HOPE.

Supervised Person Brendan Newanforbi is a 29-year-old first termer committed to the California Department of Corrections and Rehabilitation for Penal Code 289(a)(1)(A) Penetration w/Force/Violence/Fear of Immediate Bodily Injury for 6 years in state prison. Newanforbi appears to have stable residence with his family in Stockton, CA. Newanforbi is currently unemployed and not attending school. Newanforbi has incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System. Newanforbi is currently attending sex offender treatment and has not completed treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision. Continued supervision is both warranted and recommended at this time. Recommend discharge be denied at this time.

Parole Agent (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
LONG MOUA	LONG MOUA	7472	11-14-2025

Unit Supervisor Actions:

- [x] Review
- [x] Decision
- [ ] Retain On Parole
- [x] Discharge Denied/No Action
- [ ] Refer to BPH
- [ ] Discharge Controlling Offense Approved
- [ ] Discharge Non-Controlling Offense Approved
- [x] Refer to Parole Administrator

Unit Supervisor Comments/ /Decision /Recommendation:

The subject should be commended for maintaining compliance with parole supervision. The subject is unemployed, and the subject lives with his family in Stockton. The subject has no restitution obligations and, the subject has had five parole violations this period. Subject's Sex Offender Treatment Progress (HOPE): 10/15/2024 Stable 6/LSCMI 5. Level 2 below average Risk. Missed 6 sessions this Parole Period. Core Phase of treatment and working in Block 1 Module 4/7. Subject has presented homework on Victim Empathy. Does take full responsibility of offense. Subject has a relapse prevention plan to assist in his alcohol and marijuana use. Current focus on problem solving and relationship stability focusing on healthy relationships. Not eligible for titration at this time. Currently scheduled for 2 groups a week and 1 monthly individual. HOPE SOT recommends continued treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Subject is not eligible for EDC at this time due to having a 10-year parole term. Eagan has only completed approximately 4 years of the required 6.5 years of supervision. I concur with the Parolee Dynamic Profile and AOR's recommendation "Retain on Parole". Continued DAPO supervision is warranted and recommended.

Unit Supervisor (Printed Name):	Electronically Signed by:	Badge #:	Date Signed:
GARY NOGUCHI	GARY NOGUCHI	7284	11-19-2025

Parole Administrator Actions:

- [x] Review
- [x] Decision
- [ ] Retain On Parole
- [x] Discharge Denied/No Action
- [ ] Refer To BPH
- [ ] Discharge Controlling Offense Approved
- [ ] Discharge Non-Controlling Offense Approved

Parole Administrator Comments / Decision/ Recommendation:

Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time.

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Parole Administrator (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
KEELY DODD	**KEELY DODD**	**6462**	**11-19-2025**

Parolee Provided Copy (Date)

☐ Mailed By (Initials):

☐ Delivered By (Initials):

AGENT OF RECORD CONTACT INFORMATION AS OF 11/19/2025

AGENT NAME: ROJO, JOSEELYN

AGENT CONTACT: JOSEELYN.ROJO@CDCR.CA.GOV, (510) 871-7372 (Cell)

PAROLE UNIT: STOCKTON 2 GPS, 612 CARLTON AVENUE, STOCKTON, CA, 95203, (209) 948-7652